TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JULY 29, 2019
MINUTES

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Attachment 1—Staff Report

Present: Joseph Belton, Chair, David Rubin, Barry Wolff, Megan Stevens, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff: Michael Robertson, Lynnette Lynes

Mr. Belton called the meeting to order at 6:00 pm.

A. Approval of Agenda
B. Approval of Minutes

Mr. Wolff moved for approval of the agenda and minutes. Mr. Duke seconded the motion. All in favor.

C. Public Comment

Mr. John Wright, 145 Royall Lane, asked that the Board consider moving item 10 up on the agenda.

Mr. Frank Ancrum, 107 Rose Lane, referred to item #10. He suggested that homeowners should be notified of projects that are adjacent to their property. He suggested that the request would affect the character of Mount Pleasant. He questioned how the request could be considered and suggested that the request should not be approved.

Ms. DeAudre Gregg, 143 Venning St, referred to item #10 and suggested that the regular review process was not completed for this project. She expressed concern with drainage issues and that the request would increase the drainage issues. She expressed concern that the project would affect property values. She suggested that approval of this request would set a precedent.

Ms. Sherrie Jenkins, 114 Rose Lane, referred to item #10 and expressed concern with the height of the church and that it would cause additional flooding and drainage issues.

A member of the public referred to item #10 and suggested that the request should be granted.

There being no further comments, Mr. Belton continued with the agenda.

D. General Correspondence

All correspondence was provided to the Board and included with the agenda.

E. Administration of Oath

- Mr. Belton administered the oath to those speaking.

F. Business

1. **Case V-26-19, 52 Montrose Rd., TMS# 535-06-00-737, Appeal from the strict application of 156.107 and the l'On Planned Development Ordinance to designate lot as "side yard" type of zero lot line setback for accessory building in order to erect a covered storage area and patio next to an existing pool.**

   - Mr. Robertson reviewed staff comments with the Board (attachment 1).

   Mr. Robert Atkins, representative for homeowner, reviewed the request with the Board.

   Mr. Wood asked for clarification on the request. Mr. Atkins answered that the property has been traditionally treated as a side yard lot. Mr. Robertson stated that the type of lot is based on the dimensions of the lot, the placement of the house, and the amount of front porch.

   Ms. Amie Sage, 63 Joggling, asked about the parking and if the lot has the required parking.

   Mr. Ancrum asked how the lot dimensions are determined and asked to see the staff report.

   There being no further business, Mr. Belton closed public comment.

Mr. Wood asked if there is evidence that the Town was approved. Mr. Atkins answered that there is a notation on the letter that it was approved by the Town, but he is not sure who made the notation. Mr. Robertson stated that the Deputy Director, Mr. Cave, authenticated the letter and the requirements were accordingly applied. Mr. Wood asked how denial of the request would make the property unusable. Mr. Atkins answered that not having a cabana would unreasonably and unfairly restrict the use of the property as other properties have zero lot lines with accessory structures. Mr. Atkins stated that the parking is addressed by space next to the cabana and grass parking on the side of the home.

Mr. Wolff expressed concern with the parking requirements and asked for an aerial of the property be shown.

Mr. Belton suggested that the parking is not a part of the request. He asked if this property could be considered more than one property type. Mr. Robertson answered in the affirmative. Mr. Belton asked if adjacent lots are side yard types. Mr. Robertson answered that the letter indicates that lots would be considered rear yard types. He stated that a side yard type would allow the lot coverage they desire.

▶ *Mr. Wolff moved for approval based on the findings included in the staff report and that they have met all four criteria, particularly that it would not be a detriment to the neighborhood as the surrounding homes have a zero lot line. Mr. Duke seconded the motion. Motion passed on a 6 to 1 vote with Mr. Wolff, Mr. Rubin, Mr. Cowden, Mr. Belton, Ms. Stevens and Mr. Duke in favor; Mr. Wood opposed.*

2. **Case V-27-19, 901 Randall Drive, TMS# 532-11-00-033, Appeal for relief from the strict application of §156.107 (A)(3) to allow deck to extend approximately 60% into required setback The ordinance limits encroachment to 40%.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

▶ *Being that the applicant was not present, Mr. Wolff moved for deferral of the request. Mr. Cowden seconded the motion. All in favor.*

3. **Case V- 28-19, 1325 Fairmont Ave., TMS# 532-06-00-202, Appeal from the strict application of §156.226 to allow encroachment into tree protection zone to allow construction of porch.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Scott Winograd, representative for the owner, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff stated that there is an arborist report indicating that there would not be damage to the tree and suggested that this should be sufficient justification and could be done without a variance being required.

- *Mr. Cowden moved for approval of the request based on the findings that the applicant has taken extra effort to protect the trees on the property, the arborist has indicated that the footings could be installed with no damage to the tree, with the Town arborist agrees with the arborist report and approves the encroachment as well. Mr. Rubin seconded the motion. All in favor.*

4. **Case A-5-19, 549 Marshgrass Blvd., TMS# 535-02-00-059, Appeal of Zoning Official's decision applying setbacks to property. Applicant contends that what the Zoning Official has designated as the rear should be the side yard as it most closely applies to the property as developed.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Carolyn Berlin, owner, reviewed the request with the Board. She submitted a letter from the ARB Board giving approval of the plans to enclose the screen porch.

There being no comments, Mr. Belton closed public comments.

Mr. Wolff asked if the property line in question was originally considered a rear property line. Mr. Robertson answered that it appears that might have been the case.

Mr. Belton suggested that this is a unique property.

▶ *Mr. Wolff moved for approval of the request based on the findings that the lot is a unique shape, the porch has been in existence since construction of the main structure, and the property line in question should be considered a side yard. Mr. Rubin seconded the motion. All in favor.*

5. **Case V-29-19, 549 Marshgrass Blvd., TMS# 535-02-00-059, Appeal from the strict application of §156.007 Building Line and §156.303 (C) [table] to allow walled enclose of existing covered porch allowing a 19 foot rear-yard encroachment.**

No variance is needed based on the approval of the appeal, Case A-5-19.

6. **Case A-6-19, 721 Nomad Lane, TMS# 559-02-00-160, Appeal of Zoning Official's interpretation of §156.132 (G)(4) denying construction of a covered porch. Applicant contends that ordinance allows addition to the residence up to the existing, non-conforming setback encroachment.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Belton asked if there was a letter from the Zoning Administrator. Mr. Robertson answered that his comments are based on the Zoning Administrator's decision.

Mr. Wood suggested that the Zoning Administrator should be at the meetings to present his interpretation.

Mr. Carl Harrison, applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

▶ *Mr. Wolff moved for approval of the request based on the findings that 156.142(G)(4) has been met. Mr. Wood seconded the motion. All in favor.*

7. **Case A-7-19, 1119 Cotton Point, TMS# 557-13-00-091, Appeal of Zoning Official's decision applying setbacks to property. Applicant contends that the setbacks should be applied as shown on site plan.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Belton asked if the home was built prior to 2014. Ms. Linda Taylor answered in the affirmative.

Mr. Wood asked what is the request. Ms. Taylor answered that they would like to have an attached double garage. Mr. Wood asked if the home is oriented to Cotton Point. Ms. Taylor answered in the affirmative.

There being no comments, Mr. Belton closed public comments.

Mr. Wolff asked about the setbacks on the site plan. Mr. Robertson answered that this is what the applicant is representing should be the setbacks.

▶ *Mr. Wood moved for approval of the request based on the findings that the house is oriented to Cotton Point and the front setback should be as the house is oriented to allow a ten foot setback for where the garage is located and therefore the garage would be within the setback and allowed. Mr. Cowden seconded the motion. All in favor.*

Mr. Wood asked if the reason for the number of appeals is because staff is "tied" by the ordinance. Mr. Robertson answered that it could be that the ordinances should be reviewed and possibly amended or that the appeal is a result of the homeowner wanting a deviation from the ordinance and/or interpretation of the ordinance. He stated that based on these issues, staff would be reviewing the ordinances to determine if any amendments should be brought forward for consideration by Town Council.

8. **Case V-30-19, 1119 Cotton Point, TMS# 557-13-00-091, Appeal from the strict application of §156.303 (C) [table] to allow six (6) foot rear yard encroachment of attached garage.**

No variance is needed based on approval of the appeal, Case A-7-19.

9. **Case V-31-19, 2945 River Vista Way, TMS# 594-03-00-237, Appeal from the strict application of the Dunes West Planned Development Ordinance, Dunes West R-1 zoning to allow covered patio encroachment into required 15' side yard setback.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. James Franklin, owner, reviewed the request with the Board. He distributed a copy of a letter from the ARB in support of the request.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked the exact amount of encroachment. Mr. Franklin answered that it is approximately 29 inches into the setback as the furthest point.

Mr. Belton suggested that it was a minimal encroachment.

Mr. Wolff suggested that the exact encroachment should be known before a decision is made.

▶ *Mr. Wolff moved for deferral of the request in order for the applicant to bring back additional information on the exact encroachment desired. Mr. Wood seconded the motion. All in favor.*

10. Case V-32-19, 440 Whilden Street, St. Andrews Church, TMS# 532-01-00-120 & 279, Appeal from the strict application of §156.313 (D)(3) to allow lot coverage by impervious surfaces greater than 40%

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Kate Campbell, Beau Clowney Architects, reviewed the request with the Board. Mr. Mitchell Bohannon clarified the changes to the site plan with the Board.

Mr. Belton administered the oath to those that came in later in the meeting.

Mr. Reese Brown, 112 Rose Lane, expressed concern with increased drainage that is occurring since the construction has started. He stated that he is unable to enter his front door.

Mr. Ancrum asked why these plans were not done when the renovations were first considered. He also expressed concern with the public not being notified of the project. He expressed concern with the elevation of the church and that the project would negatively affect his property values. He suggested that there is a perception that there is favoritism for certain projects or individuals and

there should be fair processes and procedures. He expressed concern that the church would not have to have the same amount of open space as he is required to have.

Ms. Gregg suggested that there were some discrepancies with the applicant presentation. She stated that the public was in attendance at previous meetings speaking in opposition to the request. She expressed concern with drainage issues and flooding that is currently existing and there is concern that the drainage issues would continue in the future. She suggested that more changes should be considered to further reduce the impact from this project.

Ms. Jenkins reiterated her concern with the elevation of the new structure and that it is causing additional drainage issues and suggested that this should be addressed. She stated that there has been flooding issues previously and suggested that this is further exacerbated because of the church construction. She stated that she has contacted Town Council regarding the drainage issues, but nothing has been done to date. She asked that this request not be approved.

Mr. Wright suggested that there have been flooding issues before the church construction was started, but the drainage issues have increased due to not only the church construction, but other surrounding construction projects. He suggested that the issue is that the flooding issues need to be addressed so that

Mr. Walter Brown, Jr., 437 Venning St, stated that Mr. Wright does not represent Friendship AME church. He stated that information was provided to the church. He stated that they are aware of the posted signs. He suggested that the issue is with the OVHDC. He stated that they have a good relationship with the church and have held several events at the church. He suggested that the neighborhood is asking for some relief with the drainage.

Mr. Walter Brown, III, 435 Venning St, suggested that one issue is that some projects are reviewed and approved by staff without allowing for public input. He suggested that more drainage relief is needed in order to help relieve the runoff. He suggested that staff should not have sole review authority on large projects as it does not allow for public input.

Mr. Bohannon stated that the building will have a parapet to handle the runoff from the building and carry it to a drainage system and retention basin.

Ms. Sage stated that all owners need to be responsible for runoff and drainage so that it does not impact neighboring property.

Ms. Wanda Singleton, Snowden, suggested that there was minimal flooding issues prior to the renovation of the church. She suggested that since the construction, there have been more drainage issues. She stated that trees have been removed that help to alleviate flooding as well. She expressed concern with the neighbors not be notified of the future changes.

There being no comments, Mr. Belton closed the public comment.

Mr. Wood suggested that construction remediation should be considered to help with the drainage issues and agreed to with the neighborhood.

Mr. Wolff suggested that the Town should work together with the neighborhood to find a solution. He agreed that the church should be responsible for the runoff of the project and should be remediated. He stated that the church has the responsibility to ensure that the runoff is addressed and that the surrounding neighbors are made aware.

▶ *Mr. Wood moved for deferral of the request in order to allow time for the applicant to address and articulate drainage remediation during construction and post construction. Mr. Rubin seconded the motion. Motion passed on a 5 to 2 vote with Mr. Rubin, Mr. Cowden, Mr. Belton, Mr. Duke, and Mr. Wood in favor; Mr. Wolff and Ms. Stevens opposed.*

Mr. Bohannon stated that there are approved plans already in place that address the drainage concerns. He suggested that the drainage is regularly inspected and suggested that there no evidence that the construction is causing a drainage issue. He stated that they would be willing to review the drainage plans with neighborhood. He suggested that there is no basis for the deferral and asked that the Board reconsider its motion. He stated that the variance was to decrease the amount of lot coverage for the project, but they could move forward with the current approved plans.

11. Case V-33-19, 1513 Mathis Ferry Road, Live To Play, TMS# 559-00-00-073, Appeal from the strict application of §156.201 and S156.303 (C) [table] for

after-the-fact approval to allow encroachment of pool cover structure into required 10 foot side yard setback and bufferyard.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Mike Nixon, representative for the applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Belton asked if there is a minimal encroachment into the buffer. Mr. Robertson showed the encroachment on the plans for the Board. Mr. Nixon showed the location of the perpetual easement on the site plan for the Board.

- *Mr. Wolff moved for approval based on the findings included in the staff report and that the impact is lessened. Mr. Duke seconded the motion. All in favor.*

G. Adoption of Revised Bylaws

- *Mr. Wolff moved for deferral of adoption of bylaws in order to receive clarification on some of the changes. Mr. Rubin seconded the motion. All in favor.*

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 8:43 pm.

Submitted by,
L. Lynes
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